

26VECV03416 26VECV03416

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-07-31

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Shirley Capital v Dean

Demurrer: OVERRULED. Defendant to answer within 10 days.

Defendant argues in the demurrer that on the face of the complaint, rent was demanded for a period which is barred by Civil Code section 1942.4. None of the facts in the complaint support this. Defendant asks the court to take Judicial Notice of Code Violations dated May 4, 2026.

Under Civil

Code section 1942.4, there are specific requirements all of which must be met. Between the Code Violation notice and the face of the complaint do not satisfy all of the requirements such that the court can say as a matter of law that rent could not have been collected:

(1)The dwelling

has to be substantially uninhabitable under Section 1941.1 or violate Section 17920.10 of the Health and Safety Code, or is deemed and declared substandard as set forth in Section 17920.3 of the Health and Safety Code because conditions listed in that section exist to an extent that endangers the life, limb, health, property, safety, or welfare of the public or the occupants of the dwelling. This does not appear in the Code Violation notice nor in the complaint.

(2)A public

officer or employee who is responsible for the enforcement of any housing law, after inspecting the premises, has notified the landlord or the landlord's agent in writing of his or her obligations to abate the nuisance or

repair the substandard conditions. No notice to repair conditions listed in (1) above are shown.

(3)The conditions have existed and have not been abated 35 days beyond the date of service of the notice specified in paragraph (2) and the delay is without good cause. There is no evidence of this on the face of the complaint.

(4)The conditions were not caused by an act or omission of the tenant or lessee in violation of Section 1929 or 1941.2. This also does not appear on the face of the complaint.

For these reasons, the court overrules the demurrer. These issues are more properly for when the court can review evidence outside the face of the complaint and Judicial Notice.

The court admonishes counsel for defendant for submitting the declaration of defendant to the court on 7/29/2026. As a licensed attorney, he knows it is improper to argue facts outside the face of the complaint on a demurrer. Moreover, he attached videos to the reply which have nothing to do with the demurrer. He should know better.

Ex parte application:
Granted. As the matter has been fully briefed, the court advances the motion to compel answers to interrogatories and deem request for admissions admitted to 7/31/2026 and DENIES the motions. The evidence establishes that both the interrogatories and the request for admission responses were timely served on 7/27/2026. For insufficient responses, a different motion needs to be filed to compel further responses. Sanctions denied.

NOTE: In the future, defendant is ordered that the full name of the person serving her documents appear on the proofs of service. On one POS, the name appears as C. Cooper. On another, the name is JD Brown. The full names must be used.